

Terms of Service

Effective Date: [DD Month YYYY] **Last Updated:** [DD Month YYYY]

These Terms of Service ("Terms") govern your access to and use of the website, applications, software, products, and services (collectively, the "Services") provided by **Yatra Technologies Pvt. Ltd.**, a company incorporated under the laws of Nepal ("Yatra Technologies", "Yatra", "we", "us", or "our").

By accessing or using our Services, you agree to be bound by these Terms and our Privacy Policy. If you do not agree, you must not use our Services.

1. Eligibility

You must be at least 18 years old, or the age of legal majority in your jurisdiction, to use our Services on your own behalf. If you are between 16 and 18 years of age, you may use our Services only with the consent and supervision of a parent or legal guardian who agrees to be bound by these Terms on your behalf. We do not knowingly permit use of our Services by anyone under 16.

If you are using our Services on behalf of a company, organization, or other entity, you represent that you have the authority to bind that entity to these Terms, and "you" refers to both you and that entity.

2. Our Services

Yatra Technologies develops and provides technology products, software, applications, digital services, and related solutions.

Specific products or services may have additional terms, pricing, documentation, or policies ("Additional Terms"). Where a conflict exists between these Terms and Additional Terms for a specific product, the Additional Terms will govern for that product.

We reserve the right to modify, improve, suspend, or discontinue any part of our Services, with notice where required under Section 14.

3. Accounts

Certain Services require you to create an account. You agree to:

- Provide accurate, current, and complete information;
- Keep your account information up to date;
- Maintain the confidentiality and security of your login credentials;
- Not share your credentials except through mechanisms we expressly authorize (e.g., approved team/organization access);
- Notify us promptly at [\[legal@yatratechnologies.com\]](mailto:legal@yatratechnologies.com) of any suspected unauthorized access or security breach; and
- Accept responsibility for activity occurring through your account, except to the extent such activity results from our failure to maintain reasonable security or from unauthorized access not attributable to your negligence.

We may suspend or terminate accounts involved in fraud, abuse, security violations, or material breach of these Terms, in accordance with Section 13.

4. Acceptable Use

You agree not to use the Services to:

- Violate applicable law or regulation, including Nepal's Electronic Transactions Act, 2063 (2008) and any successor legislation;
- Infringe intellectual property, privacy, or other legal rights of any person;
- Commit or facilitate fraud, money laundering, or other unlawful financial activity;
- Attempt to gain unauthorized access to systems, networks, or accounts;
- Interfere with, disrupt, or degrade the operation, integrity, or security of the Services;
- Introduce malware, malicious code, or harmful content;
- Overload, abuse, or disrupt our infrastructure, including through automated scraping without authorization;
- Circumvent or attempt to circumvent security or access controls;
- Impersonate any person or organization or misrepresent your affiliation; or
- Engage in any activity that could reasonably be expected to cause harm to other users, third parties, or our infrastructure.

We may investigate suspected violations and take action proportionate to the violation, including warnings, feature restrictions, suspension, or termination, and may report unlawful activity to relevant authorities where required by law.

5. User Content

Some Services allow you to submit, upload, transmit, or otherwise provide content or information ("User Content").

You retain ownership of your User Content. You grant Yatra Technologies a limited, non-exclusive, worldwide, royalty-free license to host, store, process, transmit, reproduce, and display User Content solely as reasonably necessary to provide, maintain, secure, support, and improve the applicable Services. This license ends when you delete the relevant User Content or close your account, except where retention is required for legal, security, or backup purposes as described in our Privacy Policy.

You represent that you have the necessary rights and permissions to provide your User Content and that it does not infringe any third party's rights or violate applicable law. You are solely responsible for your User Content.

6. Data Retention and Deletion

We retain personal data and User Content only for as long as reasonably necessary to provide the Services, comply with legal obligations, resolve disputes, and enforce our agreements, as further described in our Privacy Policy.

You may request deletion of your account and associated personal data by contacting [\[legal@yatratechnologies.com\]](mailto:legal@yatratechnologies.com). We will act on verified deletion requests within a reasonable period, except where retention is required by applicable law, ongoing legal proceedings, or legitimate backup/security processes, in which case data will be deleted once those requirements lapse.

7. Intellectual Property

The Services, including their software, designs, interfaces, branding, logos, text, graphics, and other materials provided by Yatra Technologies, are owned by or licensed to Yatra Technologies and protected under applicable intellectual property laws, including Nepal's Patent, Design and Trademark Act, 2022 (1965) and Copyright Act, 2059 (2002).

Except where expressly permitted in writing, you may not:

- Copy or reproduce our proprietary materials;
- Modify or create derivative works from our software;
- Reverse engineer, decompile, or attempt to extract source code, except where such restriction is prohibited by applicable law;
- Redistribute, resell, sublicense, or provide the Services to third parties without authorization;
- Remove or obscure proprietary notices; or
- Use Yatra Technologies' branding, trademarks, or trade names without our prior written consent.

Nothing in these Terms transfers ownership of Yatra Technologies' intellectual property to you.

8. Payments and Subscriptions

Certain Services require payment. Prices, billing periods, renewal terms, accepted payment methods, and applicable taxes will be disclosed before or during purchase.

Unless otherwise stated in Additional Terms for a specific product:

- Fees are due according to the billing terms presented at purchase and are non-refundable except as described below or as required by law;
- Subscriptions renew automatically at the end of each billing cycle unless cancelled at least [X] days before the renewal date through your account settings or by contacting us;
- You are responsible for all applicable taxes, duties, and charges associated with your purchase, other than taxes based on our net income;
- If a payment fails, we may retry the charge and/or suspend the relevant Service until payment is resolved; and
- Prices may change with at least 30 days' notice for existing subscribers, effective at the next renewal.

Refunds: Refund requests will be evaluated in accordance with the refund policy published for the relevant product. Where no specific refund policy is published, refund requests for annual or prepaid plans may be considered on a pro-rata basis at our discretion within 14 days of the qualifying charge, except for consumed usage-based services.

9. Third-Party Services

Our Services may integrate with or depend on third-party services, APIs, hosting providers, payment processors, authentication providers, or other external systems. Yatra Technologies does not control and is not responsible for the availability, functionality, security, policies, or actions of third-party services. Your use of third-party services is subject to their own terms and policies.

10. Service Availability

We aim to provide reliable Services but do not guarantee that the Services will always be available, uninterrupted, error-free, compatible with every device or environment, or free from security vulnerabilities. Availability may be affected by maintenance, upgrades, infrastructure failures, third-party outages, network issues, or circumstances beyond our reasonable control. We will provide advance notice of planned maintenance where reasonably practicable.

11. Disclaimer

To the maximum extent permitted by applicable law, the Services are provided on an "as is" and "as available" basis, without warranties of any kind, whether express, implied, or statutory, except those expressly required by applicable law or expressly provided in a written agreement between you and Yatra Technologies.

We do not warrant that information provided through the Services will always be complete, accurate, current, or suitable for any particular purpose.

12. Limitation of Liability

To the maximum extent permitted by applicable law, Yatra Technologies and its directors, officers, employees, affiliates, and service providers will not be liable for any indirect, incidental, consequential, special, exemplary, or punitive damages, or for loss of profits, revenue, data, or goodwill, arising from or relating to your use of the Services, even if advised of the possibility of such damages.

Nothing in these Terms excludes or limits liability that cannot legally be excluded or limited under applicable law, including liability for death, personal injury, fraud, or willful misconduct.

Subject to the foregoing, Yatra Technologies' total aggregate liability arising from or relating to a particular Service will not exceed the greater of (a) the amount paid by you to Yatra Technologies for that Service in the twelve (12) months preceding the event giving rise to the claim, or (b) [NPR amount / USD amount], where the Service was provided free of charge.

13. Indemnification

To the extent permitted by applicable law, you agree to indemnify and hold harmless Yatra Technologies and its directors, officers, employees, and affiliates from and against claims, damages, liabilities, losses, and reasonable expenses (including legal fees) arising from:

- Your violation of these Terms;
- Your misuse of the Services;
- Your User Content;
- Your violation of another person's rights; or
- Your violation of applicable law.

This provision does not apply to the extent the relevant claim results from Yatra Technologies' own unlawful conduct, negligence, or liability that cannot legally be transferred to you. We will provide you with prompt notice of any claim subject to indemnification and reasonable cooperation, at your expense, in its defense.

14. Suspension and Termination

We may suspend or terminate your access to a Service where reasonably necessary, including when:

- You materially violate these Terms;
- Your activity presents a security or legal risk to us or others;
- You fail to pay applicable fees after reasonable notice;
- Required by law or a competent authority; or
- The relevant Service is discontinued, in which case we will provide reasonable advance notice where practicable.

You may stop using the Services and close your account at any time.

Provisions that by their nature should survive termination will survive, including those concerning intellectual property, data retention, liability, indemnification, dispute resolution, and outstanding payment obligations.

15. Changes to These Terms

We may update these Terms from time to time. For material changes, we will provide at least 15 days' advance notice through our website, application, email, or other appropriate communication before the changes take effect, except where a shorter period is required for legal or security reasons.

Your continued use of the Services after updated Terms take effect constitutes acceptance of the revised Terms. If you do not agree to a material change, you may terminate your account before the effective date, without penalty for the unused portion of any prepaid fees.

16. Privacy

Your use of the Services is subject to our Privacy Policy, available at [\[link\]](#), which explains how we collect, use, store, and protect personal information, and describes your rights regarding that information.

17. Governing Law and Dispute Resolution

These Terms are governed by and construed in accordance with the laws of Nepal, without regard to conflict of law principles, unless another governing law is expressly agreed in a separate written agreement.

Informal resolution: Before initiating formal proceedings, you agree to first contact us at [\[legal@yatratechnologies.com\]](mailto:legal@yatratechnologies.com) to attempt to resolve the dispute informally. We will attempt to resolve the dispute within 30 days of receiving notice.

Arbitration: If a dispute is not resolved informally within 30 days, it shall be referred to and finally resolved by arbitration in Kathmandu, Nepal, in accordance with the Arbitration Act, 2055 (1999) of Nepal, by a sole arbitrator appointed by mutual agreement of the parties. The arbitration shall be conducted in English or Nepali, as agreed by the parties. This clause does not prevent either party from seeking urgent injunctive relief from a competent court where necessary to prevent irreparable harm.

Jurisdiction: Subject to the arbitration provision above, the courts of Kathmandu, Nepal shall have exclusive jurisdiction over any matter not subject to arbitration or arising from enforcement of an arbitral award.

Limitation period: Any claim arising out of or relating to these Terms must be filed within one (1) year after the claim arose, unless applicable law requires a longer period.

18. Severability

If any provision of these Terms is found invalid or unenforceable by a court or arbitrator of competent jurisdiction, that provision will be limited or eliminated to the minimum extent necessary, and the remaining provisions will continue in full force and effect.

19. Waiver

No failure or delay by Yatra Technologies in exercising any right under these Terms will operate as a waiver of that right, nor will any single or partial exercise preclude any other or further exercise of that or any other right.

20. Assignment

You may not assign or transfer these Terms or any rights or obligations under them without our prior written consent. We may assign these Terms in connection with a merger, acquisition, reorganization, or sale of assets, or by operation of law, without restriction.

21. Entire Agreement

These Terms, together with any Additional Terms and our Privacy Policy, constitute the entire agreement between you and Yatra Technologies concerning your use of the Services, and supersede all prior agreements or communications on the subject.

22. Contact Us

For questions regarding these Terms, contact:

Yatra Technologies Pvt. Ltd. Email: legal@yatratechnologies.com **Website:** <https://yatratechnologies.com> **Address:** [Registered Company Address] **Phone:** [Company Phone Number]

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